

MASTER BUSINESS PROCESS OUTSOURCING (BPO) AGREEMENT

Submission Date: December 6, 2025
Supplier: GlobalTech Solutions LLC (Hyderabad, India)
Customer: Capstone Inc. (Global HQ)
Contract Reference: GTS-CAP-2025-BPO-GLOBAL-001

CONFIDENTIALITY STATEMENT

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DOCUMENT CONTROL

Version History

Version	Date	Author	Description of Changes
1.0	Dec 06, 2025	GlobalTech Legal	Initial Submission for Global BPO Services (F&A, HR, Procurement, Contact Center).

Approvals

Role	Name	Signature	Date
Customer Signatory	[Name]		
Supplier Signatory	[Name]		

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1. STATEMENT OF WORK (SOW)

1.1 Introduction & Purpose

This **Statement of Work ("SOW")** defines the global **Business Process Outsourcing (BPO) Services** to be provided by **GlobalTech Solutions LLC ("Supplier")**, headquartered in **Hyderabad, India**, to **Capstone Inc. ("Customer")**. The objective is to consolidate and transform Customer's back-office operations across **Finance, HR, Procurement, and Customer Support**.

1.2 Scope of Work (In-scope/Out-scope)

In-Scope Services

1. **Finance & Accounting (F&A):**
 - Accounts Payable (P2P) & Accounts Receivable (O2C).
 - General Ledger (R2R) & Financial Reporting.
 - Travel & Expense Management.
2. **HR Services (HRO):**
 - Payroll Processing (Global).
 - Benefits Administration.
 - Employee Data Management (Workday/SAP HR).
 - Recruitment Process Outsourcing (RPO) coordination.
3. **Procurement Services:**
 - Vendor Master Data Management.
 - Strategic Sourcing Support.
 - PO Processing & Compliance Checks.
4. **Contact Center (Customer Support):**
 - Omnichannel Support (Voice, Email, Chat, Social).
 - L1/L2 Technical Support & Customer Service.
 - Languages: English, Spanish, French, Portuguese, Mandarin.

Out-Scope Services

1. Statutory Tax Filings (retained by Customer Legal).
2. Final hiring decisions for Customer employees.
3. Signing authority on bank accounts.

1.3 Requirements (Functional/Technical)

- **Security Alignment:** Strict adherence to **CIP-ISP-001** (MFA, Encryption).
- **Availability:** 24/7/365 coverage for Contact Center; Business Hours for F&A/HR with month-end extensions.
- **Locations:** Services delivered from Hyderabad (India), Sao Paulo (Brazil), Budapest (Hungary), and Dallas (USA).

1.4 Timeline & Milestones

- **Phase 1 (Month 1-3):** Discovery & Due Diligence.
- **Phase 2 (Month 4-6):** Transition & Shadowing (Parallel Run).
- **Phase 3 (Month 7):** Go-Live (Supplier assumes operational control).
- **Phase 4 (Month 8-12):** Stabilization & Transformation (RPA Implementation).

1.5 Roles & Responsibilities

- **Supplier:** End-to-end process execution, staffing, training, and SLA attainment.
- **Customer:** Process ownership, policy definition, and exception approvals.

1.6 Pricing & Payment

- **Total Contract Value:** \$180,000,000 USD (5-Year Term).
- **Payment Terms:** Net 180 Days from receipt of valid invoice (**CIP-COM-009**).
- **Rate Validity:** Fixed for 5 Years, inclusive of COLA/Inflation (**CIP-COM-009**).
- **Currency:** USD. Supplier bears FX risk (**CIP-COM-009**).

1.7 Assumptions & Dependencies

- Customer provides access to ERP systems (SAP/Oracle) via secure VDI.
- Customer retains authority for financial approvals above agreed thresholds.

1.8 Change Management

Changes follow **CIP-RCA-005** ensuring regulatory impact assessments (e.g., SOX, GDPR) are conducted before process modification.

1.9 Acceptance Criteria

Successful completion of 3 month-end closes with zero material errors.

1.10 Terms & Conditions

Governed by the MSA attached herein.

1.11 Appendices

- **Appendix A:** SLAs & KPIs.

- **Appendix B:** Transition Plan.

2. MASTER SERVICES AGREEMENT (MSA)

2.1 Definitions

- **"Confidential Information"**: As defined in **CIP-ISP-001** (Public, Internal, Confidential, Restricted).
- **"Regulated Data"**: PII, PHI, or PCI data governed by **CIP-GPS-001** and **CIP-ICF-006**.

2.2 Scope & Relationship

Supplier acts as an independent contractor providing global BPO services.

2.3 Term & Termination

- **Term:** Five (5) Years.
- **Termination:** Customer for convenience (30 days). Supplier for cause (non-payment > 210 days).

2.4 Service Obligations

Supplier warrants alignment with Capstone Policies:

- **[Compliant] Security:** Adherence to **CIP-ISP-001** (MFA, Encryption, Access Control).
- **[Compliant] Ethics:** Adherence to **CIP-ECC-002** (Anti-Fraud, SoD).
- **[High Risk Deviation] Incident Reporting:** Supplier shall report security incidents within **24 hours** of confirmation (Deviation from **CIP-ISP-001** 30-min requirement).
- **[Low Risk Deviation] Work Location:** Contact Center agents in Brazil/Hungary handling non-sensitive queries may work from home without full-disk encryption if using secure VDI (Deviation from **CIP-RWP-010**).

2.5 Pricing & Billing

- **Invoicing:**
 - Milestones: 15 days after sign-off.
 - BAU: 15 days after month-end.
- **Transparency:** Invoices must have detailed calculations; opaque invoices will be **rejected** (**CIP-COM-009**).
- **Refunds:** Disputed paid amounts refunded within **7 days** (**CIP-COM-009**).

2.6 Confidentiality

Strict adherence to **CIP-GPS-001** and **CIP-ECC-002**.

2.7 Intellectual Property

Customer owns all data and Process Documentation. Supplier retains pre-existing IP.

2.8 Data Protection

- **[Compliant] Privacy:** Full GDPR/CCPA compliance per **CIP-GPS-001**.
- **[High Risk Deviation] Data Transfer:** Supplier may transfer data between global centers (e.g., Brazil to India) for "Follow-the-Sun" support without specific TIAs for each transaction, relying on intra-group agreements (Critical Risk deviation from **CIP-GPS-001**).

2.9 Warranties & Indemnification

- **Warranty: 24 Months** for all deliverables (**CIP-LGL-008**).
- **Indemnification (Uncapped):** Supplier indemnifies Customer **without limit** for IP Infringement, Data Breach, and Negligence (**CIP-LGL-008**).

2.10 Compliance & Insurance

- **Parental Guarantee:** Supplier provides a **Parental Company Guarantee** from Ultimate Parent Entity (**CIP-LGL-008**).
- **Insurance:** Cyber Liability (\$50M), E&O (\$20M).

2.11 Dispute Resolution

Arbitration in New York (Global), London (EMEA), Singapore (APAC).

2.12 Miscellaneous

Governing Law: New York.

3. INTERNAL POLICY DOCUMENT (Project Specific)

3.1 Metadata

- **Policy Name:** BPO Operational Standards
- **ID:** BPO-OPS-2025
- **Version:** 1.0

3.2 Purpose & Scope

Rules for Supplier staff accessing Customer financial/HR systems.

3.3 Policy Statement

Must comply with **CIP-AUP-003** (Acceptable Use) and **CIP-ECC-002** (Code of Conduct).

3.4 Roles & Responsibilities

- **Supplier Ops Lead:** Enforce compliance.
- **Customer Internal Audit:** Validate compliance.

3.5 Procedures

- **Segregation of Duties:** No single agent can create and approve a vendor or payment (**CIP-ECC-002**).
- **Clean Desk Policy:** Mandatory for Contact Center & F&A.

3.6 Exceptions

- **[Low Risk]** Supplier agents may use personal mobile phones for MFA authentication apps (Deviation from strict asset usage).

3.7 Consequences

Immediate termination of staff for fraud or policy violation.

3.8 Related Docs

- CIP-ECC-002, CIP-ISP-001

4. REGULATORY COMPLIANCE (Schedule)

4.1 Purpose & Context

Ensures BPO services meet **CIP-ICF-006** (Financial/Healthcare regulations).

4.2 Definitions

"Regulated Functions": F&A (SOX/PCI), HR (GDPR/PII).

4.3 Compliance Requirements

Supplier must maintain **SSAE 18 (SOC 1 & SOC 2)** and **ISO 27001**.

4.4 Operational Controls

- **Background Checks:** Mandatory for all staff handling money or PII.
- **Anti-Money Laundering (AML):** Mandatory training for F&A staff.

4.5 Data Protection

Subject Rights Requests handled within 30 days.

4.6 Audit & Enforcement

Customer has right to audit Supplier premises (Hyderabad, etc.) with 24 hours notice.

4.7 Exceptions

None for Regulatory Compliance (Critical Risk).

5. GENERAL TERMS & CONDITIONS

5.1 Preamble & Acceptance

Agreement between GlobalTech Solutions LLC and Capstone Inc.

5.2 Definitions

Standard legal definitions apply.

5.3 Provision of Services

Professional standards; adherence to SLAs.

5.4 Fees & Invoicing

- **Payment:** Net 180 Days.
- **Currency:** USD (Supplier risk).
- **Rates:** Fixed 5 Years.

5.5 Client Obligations

Provide system access and timely approvals.

5.6 Intellectual Property

Customer owns all Work Product.

5.7 Confidentiality

Uncapped liability for breach.

5.8 Warranties & Disclaimers

24-Month Warranty on deliverables.

5.9 Limitation of Liability

UNLIMITED LIABILITY for:

1. Direct Damages.
 2. Data Breaches / Privacy Violations.
 3. IP Infringement.
 4. Gross Negligence / Willful Misconduct.
- *(Aligns with CIP-LGL-008)k Policy).*

5.10 Indemnification

UNCAPPED INDEMNITY for third-party claims related to IP, Data, or Negligence (**CIP-L